

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

Present

**Justice Muhammad Khurshid Alam Sarkar
And
Justice Sardar Md. Rashed Jahangir**

Writ Petition No. 6147 of 2020

In the matter of:

An application under article 102 read with
article 44 of the Constitution of the People's
Republic of Bangladesh.

And

In the matter of:

Matiur Rahman

.... Petitioner

-Versus-

Government of People's Republic of
Bangladesh and others

.... Respondents

Mr. Shah Muhammad Ezaz Rahman

with

Mr. Mustaque Ahmed Chowdhury

with

Mr. Mohammad Abidul Haque, Advocates

.... For the petitioner

Mr. Hironmay Halder and

Mr. M. Mohiuddin Yousuf, Advocates

.... For respondent No.3

Judgment on :18.05.2023.

Sardar Md. Rashed Jahangir, J:

The Rule Nisi was issued on an application under article 102
of the Constitution of the People's Republic of Bangladesh, calling

upon the respondents to show cause as to why the order No.87 dated 14.01.2020 passed by the Judge, Artha Rin Adalat and Joint District Judge, Second Court, Sylhet in Artha Rin Suit No.10 of 2011 rejecting the petitioner's application for examining the petitioner's signature by Hand Writing Expert appearing in various documents filed by the plaintiff, Basic Bank Limited and comparison of the same with the signature given by the petitioner in the account opening form (Annexure-'F' to the writ petition) should not be declared to have been passed without lawful authority and is of no legal effect and/or pass such other or further order or orders as to this Court may seem fit and proper.

Petitioner before this Court is the defendant of Artha Rin Suit No. 10 of 2011 filed by the respondent no.3, Basic Bank Ltd. before the respondent No.2, Artha Rin Adalat, Sylhet stating interalia that the defendant-petitioner applied for SOD facility and the said loan facility for an amount of Tk.27,00,000/- was allowed by respondent no.3 vide sanction letter dated 13.10.2003; subsequently the loan limit was extended under sanction letter dated 01.01.2008 and was stood at Tk.81,70,000/-. It is further stated that after adjustment (through encashment of FDR) of an amount of Tk.54,39,366/-, the outstanding SOD loan amount on 31.03.2011 was stood at Tk.36,35,248.19 and thereafter for recovery of the said defaulted amount, plaintiff

filed the instant Artha Rin case. Defendant appeared in the said suit and contested by filing a written statement on 09.09.2012 and the case was proceeded thereby. On 14.07.2019 the defendant filed an application before respondent No.2 under section 57 of the Artha Rin Adalat Ain, 2003 read with section 45 of the Evidence Act, 1872 for examining the petitioner's signature appearing in various documents submitted by the plaintiff-bank in comparison with the signature put by the petitioner in the account opening form.

The respondent No.2 after hearing on 03.11.2019 rejected the application. Thereafter, the defendant on 14.01.2020 filed another application before the respondent No.2 for re-consideration of his application dated 14.07.2019 and respondent No.2 after hearing 14.01.2020 also rejected the said application for re-consideration.

On being aggrieved by the order dated 14.01.2020 of respondent No.2, defendant filed the instant writ petition and obtained the Rule Nisi and order of stay.

Mr. Shah Muhammad Ezaz Rahman, learned Advocate appearing for the petitioner submits that the respondent no.2 in passing the impugned order failed to consider that the defendant consistently denied taking of any loan, executing any charge or other relevant documents in favour of plaintiff-Bank in his

written statement evidence and in evidence before the Artha Rin Adalat as D.W.1 and the P.W. 1 in his cross-examination also admitted that the signatures claimed to be put by the defendant in several charge documents appears to be dissimilar on the face of the record and thus, rejecting the petitioner's application by the respondent No.2, without consideration of the above aspect of the case denying the right of self-defence of the defendant-petitioner, violated the fundamental right of the petitioner guaranteed under the Constitution. He further submits that the defendant-petitioner in his written statement submitted on 09.09.2012 categorically denied taking of any loan or executing any charge documents in favour of the bank or even denied having any so called FDR, claimed to be encashed by the respondent-bank and in his deposition as D.W.1 categorically deposed in support of his said denial and thereafter on 14.07.2019 filed an application under section 57 of the Artha Rin Adalat Ain, 2003 read with section 45 of the Evidence Act, 1872 demanding examination and comparison the petitioner's signature appearing in various documents filed by the plaintiff-bank through Firisti, in particular, Firisti Nos.1, 3-7, 9, 13-16, 18, 20, 22-24 with the admitted signature of petitioner appearing on the document filed through Firisti No.2; but the respondent No.2 failed to apply his judicial mind in holding that long after filing the suit the defendant for the first time denied the taking

of any loan by way of filing this application and on that wrong notion illegally and arbitrarily rejected the application for examining petitioner's signature appearing in various documents supplied by the plaintiff-bank by hand writing expert. In support of the submission he referred the case of Tarak Chandra Majhi -Vs- Atahar Ali Howlader and others, reported in 8 BLC(AD) 67 and case of Abdus Samad (MD) -Vs- Mohammad Sekendar Ali and others reported in 20 BLC 350 and thereby finally contended that in view of above the Rule is liable to be made absolute.

On the other hand, Mr. Hironmay Haldar, learned Advocate by filing an affidavit-in-opposition appearing for the respondent No.3 and submits that the petitioner opened a current account on 13.10.2003 with the respondent-bank and applied for SOD facility and was allowed the said loan facility for an amount of Tk.27,00,000/-; the loan limit was extended subsequently and lastly on 01.01.2008 it stood at Tk.81,70,000/- and after adjustment, the outstanding dues was stood at Tk.36,35,248.19 and thereafter bank filed the Artha Rin Suit for recovery of the dues.

Heard learned Advocate for the petitioner and learned Advocate for the respondent No.3, perused the writ petition alongwith the annexures and supplementary affidavit dated

29.03.2023; having gone through the affidavit-in-opposition and the cited judgments.

It appears that the respondent No.2 by the order dated 03.11.2019 and 04.01.2020, rejected the application dated 14.07.2019 and application for re-consideration dated 14.01.2020 filed by the defendant-petitioner with the following findings (order dated 03.11.2019):

“উভয় পক্ষের বক্তব্য শ্রবণ করলাম। বিবাদীপক্ষ দাবী ক-র-ছেন যে, বিবাদীর নিকট কৌশল-লব্ধ ফর-ম ব্যাংক কর্মকর্তা সই নি-য়-ছেন। বিবাদী ফ-র্ম সই ক-র-ছেন তা D.W-1 হিসাব প্রদত্ত জবানবন্দী-তও স্বীকার ক-র-ছেন। বিবাদী ঋণ গ্রহণ ক-র-নি ম-র্ম দাবী ক-র-ছেন। বিবাদীর ঋণের কিছু টাকা পরিশোধিত হ-য়-ছে যা নথি পর্যালোচনায় দেখা যায়। মামলাটি বিচার-র- শেষ পর্যায় আ-ছে। বিবাদী প্রকৃতই ঋণ গ্রহণ ক-র-ছে কিনা তা উভয় পক্ষের সাক্ষ্য বি-শ্লেষ-ন সিদ্ধান্ত গ্রহণ সম্ভব পর। মামলাটি ২০১১ সাল থেকে চলমান দীর্ঘদিন প-র বিবাদী কর্তৃক ঋণের আ-বদন অস্বীকার ক-র হস্তলেখা বিশারদ দ্বারা পরীক্ষার আ-বদন মূলত অত্র মামলার বিচার বিলম্বিত করার জন্যই করা হ-য়-ছে ম-র্ম প্রতীয়মান হয়। এমতাবস্থায় চার্জ দলিল সহ অন্যান্য ডকু-মেন্টে বিবাদীর স্বাক্ষর হস্ত-লেখা বিশারদ দ্বারা পরীক্ষার আবেদন যুক্তিসঙ্গত নয় বি-বচনায় না মঞ্চুর করা হল।”

It further appears that the specific contention of the petitioner is that he did not apply for any loan or for enhancement of loan limit or withdraw any money from the loan account or having any FDR in the Respondent No.3, bank and the P.W.1 in his cross-examination admitted that the specimen

signature of the petitioner does not match with his signatures appearing in several charge documents (submitted by the plaintiff), alleged to have been executed by the petitioner and as such the said documents ought to have referred to the handwriting expert for comparison and examination to verify their authenticity and genuineness.

The defendant as D.W.1 in his deposition stated as under:

“ আমি মায়ের বড় সন্তান হিসাবে তার পক্ষে ব্যাংকের লেনদেন গুলো করতাম। ২০০৩ সা-ল আমার মা-য়র -লন-দন শেষ হয়। তৎকালীন ব্যবস্থাপক পারবান চৌধুরীর সা-থ আমার ভাল সম্পর্ক গ-ড় উ-ঠ। তিনি তা-দর ব্যাং-ক আমার একটি একাউন্ট খোলার অনু-রাধ ক-রন। তিনি আমা-ক ৩/৪টি ছাপা-না ব্ল্যাংক ফর-ম আমার কাছ থে-ক স্বাক্ষর গ্রহণ ক-রন। সরল বিশ্বাসে আমি ব্ল্যাংক আবস্থাতেই ফরম গুলিতে স্বাক্ষর করেছিলাম। আমার ঐ একাউন্টটি-ত আমি নি-জ কোন লেন-দন করিনি কিংবা কোন ঋণ গ্রহণ করিনি। আমার ঋণ গ্রহ-নর কোন প্র-য়োজনও ছিলনা।

আদালত থে-ক সমন পে-য় জান-ত পারি যে, আমার কাছ -থ-ক গৃহিত স্বাক্ষরিত ব্ল্যাংক ফরমগুলো ব্যবহার করে সেগুলো নিজেরাই পুরন করে আমার অনুকূলে ঋণ প্রদান করা হয়েছে মর্মে কাগজ সৃষ্টি করেছেন। কাগজগুলো জাল করা হয়েছে। উক্ত কাগজগুলো ব্যবহার ক-র আমার বিরূ-দ্ধ মিথ্যা বর্ণনায় মামলা দা-য়র করা হ-য়-ছ। ছাপা ফরম ছাড়াও সেগুলোর সাথে আরো কিছু কাগজ আমার স্বাক্ষর জাল করে সৃষ্টি করা হয়েছে বলে দেখতে -প-য়ছি।

আমি বাদী ব্যাং-কর কা-ছ কখনও ঋ-ণর আ-বদন করিনি কিংবা ঋণ নেয়ার কোন কারণও ঘটেনি, চেক বা নগদে উক্ত একাউন্ট থেকে কোন টাকাও উত্তোলন করিনি। আমি ঋণ

নবায়ন বা বর্ধনর আ-বদন করিনি। ব্যাংকর অনুকূল কোন চার্জ ডকু-মেন্ট সম্পাদন করিনি।”

and in his application dated 14.07.2019 he stated and demanded in the following manner :

“ ৩। মৃত পারবান চৌধুরী বিভিন্ন সম-য় বিবাদীর দস্তখত জাল করতঃ চার্জ দলিল সৃষ্টি ক-রন যাহা মোকদ্দমায় সঠিক বিচারের নিমিত্ত একজন হস্তরেখা বিশারদ কর্তৃক পরীক্ষা-স্ত রি-পোর্ট হওয়া বাঞ্ছনীয় ও আবশ্যিক এবং যাহাতে মোকদ্দমার সুষ্ঠু বিচার কার্য সম্পাদ-ন অতীব প্র-য়োজন। তাই বিবাদী কর্তৃক হিসাব খোলা ফর-ম বাংলায় প্রদত্ত দস্তখতের সহিত মোকদ্দমা দায়ের কালে বাদী কর্তৃক দাখিলী বিগত ১৩.০৪.২০১১ ইং-রজী তারি-খর ফিরিস্তির ১, ৩-৭, ৯, ১৩-১৬, ১৮, ২০, ২২-২৪ নং ক্রমিক ও তাহাদের দাখিলী বিগত ০৯.০৯.২০১৪ ইং তারি-খর ফিরিস্তির ১ এবং ২ নং ক্রমিক document এর সহিত বিবাদীর স্বাক্ষর একজন হস্ত-রখা বিশারদ কর্তৃক পরীক্ষান্তে রিপোর্ট পাওয়া নতুবা বিবাদীপক্ষের অপূনীয় ক্ষতি ও মোকদ্দমা যথা বিচা-র হানী ঘটি-ব।”

On examination of the averment of the written statement dated 09.09.2012 submitted by the defendant-petitioner, it appears that he categorically denied that he did not apply for any loan or for enhancement of loan limit or withdraw any money from the loan account or having any FDR with the respondent No.3, bank; and in support of the said assertion of written statement he also deposed as D.W.1 before the Court and specifically denied applying for any loan or for enhancement of loan limit or withdraw any money from the loan account or creating any charge document in favour of the bank or putting

any sign on the loan acceptance letter. In continuation of his said specific case subsequently he filed an application on 14.07.2019 with the abovementioned averments. Learned Judge of the Artha Rin Adalat failed to appreciate that the defendant consistently trying to assert or establish that by way of forgery and creating false documents, respondent-bank falsely filed the artha rin case and in support of said defence, he filed the application on 14.07.2019. And the respondent No.2 in rejecting the said application committed gross illegality, denying the right of defence of defendant-petitioner, which tantamounts to infringement of his fundamental right.

It is true that under section 73 of the Evidence Act, 1872 the Court is empowered to compare and take decision about the similarity or dissimilarity of hand writing and signature of the contending parties but in the case of Tarak Chandra Majhi -Vs- Atahar Ali Howlader, reported in 8BLC(AD)67, it is held that-

“13. Resorting to the ‘unsatisfactory and dangerous’ mode of comparison of the contentious signature or writing with the admitted writing or signature and thereby arriving at the ‘notional view’, ‘seems to be’, ‘appears to be’, ‘may be assumed to’ or ‘perceiving’ or ‘guessing probability’ of being similar to the admitted writing or signature without the aid in evidence of microscopic enlargement and any expert advice and then stacking judgment thereon is not only risky but unsafe too and consequent

thereupon there is serious chance of error in the final decision. So, to avoid the risk of falling into error as to genuineness of writing, signature etc, upon resorting to unsatisfactory and dangerous mode or procedure of examining the contentious signature, writing, etc by the Court through comparison the best course, in our opinion, is to avoid said 'unsatisfactory and dangerous procedure' and the desired course should be to go for microscopic enlargement and expert advice since the science of examination of signature, writing etc. for determination of similarity through microscopic enlargement has advanced enough and has reached to the stage of accuracy and certainty as well as expertise skill is also available.

14. In case of contentious writing, signature, etc, though provision of section 73 of Evidence Act permits the Court to compare the contentious signature with the admitted signature, the safe and best course, in our view, for the court would be to avoid the practice of comparing the writing or signature, etc, and should not stake its judgment on the opinion formed or view taken upon resorting to risky or, in other words, unsatisfactory and dangerous procedure."

From the above, it appears that our Apex Court discouraged the Courts to take the responsibility on his own shoulder to take decision about contentious signature and hold that the Court should take resort the opinion of expert under section 45 of the Evidence Act, 1872.

In the premise above, we are of the view that the respondent No.2, learned Judge of the Artha Rin Adalat committed gross illegality in rejecting the application dated 14.07.2019 filed by the defendant-petitioner.

Accordingly, the order dated 03.11.2019 and 14.01.2020 passed by the respondent No.2 is hereby set aside and the respondent No.2 is directed to send the concerned documents as stated in paragraph-3 of the application dated 14.07.2019 to a hand writing expert for comparison with the admitted signature containing in Firisty No.2 submitted by the plaintiff in the Court.

The respondent No.2 is further directed to take necessary steps for sending and collecting the expert opinion within 60(sixty) days from the date of receipt of this judgment.

With the above direction, the Rule is made absolute without any order as to cost.

Muhammad Khurshid Alam Sarkar,J:

I agree.